TCD 001/2020 (1) Gate Mena DMCC (Formerly Houbi OTC DMCC) (2) Huobi Mena FZE v (1) Tabarak Investment Capital Limited (2) Christian Thurner

MAY 18, 2023 TECHNOLOGY AND CONSTRUCTION DIVISION - ORDERS

Claim No: TCD 001/2020

IN THE DUBAI INTERNATIONAL FINANCIAL CENTRE COURTS

IN THE COURT OF FIRST INSTANCE

TECHNOLOGY AND CONSTRUCTION DIVISON

BETWEEN

(1) GATE MENA DMCC (FORMERLY HOUBI OTC DMCC)

(2) HUOBI MENA FZE

Claimants

and

(1) TABARAK INVESTMENT CAPITAL LIMITED

(2) CHRISTIAN THURNER

Defendants

CONSENT ORDER

UPON the Judgment of Justice Sir Richard Field dated 26 October 2022 dismissing the Claimants' claims against each Defendant (the "Judgment")

AND UPON the Order with Reasons of Justice Sir Richard Field dated 21 February 2023, pursuant to which the Claimants were ordered (among other things) to pay the First and the Second Defendants' costs of the proceedings, such costs to be determined by detailed assessment, if not agreed (the "Cost Order")

AND UPON the provisions of RDC Part 40.2 which provides that a detailed cost assessment is not stayed pending an appeal unless the Court so orders

AND UPON the provisions of RDC Part 40.10 which provides that the period for commencing a detailed cost assessment is three (3) months after the date of the relevant order determining a parties entitled to costs, or three (3) months after the date of the order lifting a stay of the detailed cost assessment proceedings

AND UPON the three-month time period for the First and Second Defendant to (separately) commence detailed cost assessment proceedings commencing from the date of the Cost Order

AND UPON the Claimants being granted permission to appeal the Judgment pursuant to the Orders of Justice Sir Richard Field dated 7 February 2023 and Chief Justice Zaki Azmi dated 17 April 2023

AND UPON the appeal being allocated with appeal number CA-002-2023 (the "Appeal")

AND UPON the parties having agreed to the terms of this Order by consent

IT IS HEREBY ORDERED THAT:

1. The period for the First and Second Defendant to commence detailed cost assessment proceedings be stayed, pending the outcome of the Appeal.

2. By no later than 14 days after the decision of the Court of Appeal, the First and Second Defendants shall separately write to the DIFC Courts Registry to advise whether they intend to proceed with a detailed cost assessment in respect of the Cost Order, and if so to request that the stay, imposed pursuant to paragraph 1 above, be lifted.

3. Upon the stay being lifted, the period for each Defendant to commence detailed cost assessment proceedings, pursuant to RDC Part 40.10 shall concurrently start to run from the date of the order lifting the stay.

4. Costs shall be costs in the case.

5. The parties shall have liberty to apply.

Issued by:

Delvin Sumo

Assistant Registrar

Date of issue: 18 May 2023

At: 11am